

Sagar Gupta v. State of U.P. and Another

High Court of Judicature at Allahabad · Division Bench · 31 March 2023 · Writ - C No. 10538 of 2023 · **Disposed; fresh order to follow Supply Code after hearing.**

HEADNOTE

Writ against a demand of Rs. 67,120 for alleged theft of electricity disposed of after the Electricity Department withdrew the final assessment and undertook to pass a fresh order after hearing. Liberty was reserved to pass that order strictly in accordance with the procedure under the U.P. Electricity Supply Code, 2005. Liability for the alleged theft was left open.

FACTUAL SUMMARY

The petitioner, Sagar Gupta, challenged a demand notice dated 27 December 2022 issued by the respondent Electricity Department for recovery of Rs. 67,120 towards electricity dues in a case of alleged theft of electricity. At the hearing, the brief holder for the Department's counsel stated that the order of final assessment had been withdrawn and that the respondents would pass a fresh order after giving the petitioner an opportunity of hearing.

HOLDING-UNITS

HOLDING-UNIT · UP-2005

Fresh assessment after withdrawal of a theft-dues demand

HOLDING

On the Electricity Department's statement that the final assessment had been withdrawn and that a fresh order would follow an opportunity of hearing, the writ against the demand notice was disposed of, with liberty to the respondents to pass that order strictly in accordance with the procedure prescribed under the U.P. Electricity Supply Code, 2005. ¶ 1

PRINCIPLE TAGS

fresh-order-must-follow-supply-code-procedure

The writ was disposed on the Department's withdrawal of the final assessment, confining any fresh order to one passed after hearing and strictly under the procedure prescribed by the U.P. Electricity Supply Code, 2005. ¶ 1

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — WHETHER THE PETITIONER WAS LIABLE FOR THE ALLEGED THEFT OF ELECTRICITY AND FOR THE SUM OF RS. 67,120.

The final assessment was withdrawn. A fresh order after hearing was left to the respondents under the Supply Code. ¶ 1